



Durban Navigation Collieries Act 1968

CHAPTER xx

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ELIZABETH II



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Act to make provision for the transfer to the Republic of South Africa of the registered office of The Durban Navigation Collieries Limited for the purpose of enabling that company to assume South African nationality, for the cesser of application to that company of provisions of the Companies Acts 1948 to 1967 consequent upon such assumption; and for other purposes incidental thereto. [3rd July 1968]

✓ WHEREAS—

- 1) The Durban Navigation Collieries Limited (hereinafter referred to as "the Company") is an existing company within the meaning of the Companies Act 1948, and is a company 1948 c. 38. limited by shares:
- 2) The Company carries on the business of coal mining in the Republic of South Africa:
- 3) The registered office of the Company is situate in England:
- 4) The administration of the affairs of the Company is carried on at its head office in Pretoria in the Republic of South Africa and the operating and business activities of the Company are carried on in the said Republic:
- 5) No part of the administration or the operating or business activities of the Company is carried on in the United Kingdom:
- 6) All the issued ordinary share capital of the Company is held by shareholders resident in the Republic of South Africa:

(7) By section 201A of the Companies Act No. 46 of 1948 (as amended) of the Republic of South Africa the State President, if satisfied (inter alia) that the incorporation of a foreign company within the meaning of that Act in the other country where it incorporated has been or will be either cancelled or transferred to the said Republic in accordance with the laws of that other country or by such means as may be lawful and effective in that country, may by proclamation declare that the foreign company shall be incorporated in the said Republic under Chapter I of the said Act:

(8) Having regard to the area of operations of the Company and with a view to the more efficient and economical working of the Company, it is expedient that the Company should cease to be registered in England and become incorporated in the Republic of South Africa subject to the provisions of the said Act of the Republic:

(9) No procedure exists whereby the registration of a company to which the Companies Acts 1948 to 1967 apply can be transferred from England to another country:

(10) Procedure by way of winding up and dissolution of the Company and the transfer or sale of assets to a new company or companies registered in the Republic of South Africa would involve loss of the identity of the Company and the disturbance of its financial structure and existing contracts and interfere with the continuity of its operations, with considerable attendant expense:

(11) It is expedient that the Company should be enabled to attain South African nationality otherwise than by way of winding up and dissolution and transfer or sale of assets as aforesaid and that upon the granting to the Company of South African nationality the provisions of the Companies Acts 1948 to 1967 (with the exception of those provisions which apply to overseas companies) should cease to apply to the Company:

(12) It is expedient that such provisions should be enacted for the purpose of attaining the above-mentioned objects as are in this Act contained:

(13) The objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the Durban Navigation Collieries Act 1968.

(1) In this Act, unless the subject or context otherwise Interpretation.
requires—

“the Company” means The Durban Navigation Collieries Limited;

“the date of registration” means the date of the registration of the Company in the Republic pursuant to a Proclamation of the State President under section 201A of the South African Act declaring that the Company shall be incorporated in the Republic under Chapter I of that Act;

“the Registrar in England” means the registrar or other officer performing under the Companies Act 1948 the 1948 c. 38. duty of registration of companies in England;

“the Registrar in South Africa” means the Registrar of Companies appointed under section 3 of the South African Act;

“the Republic” means the Republic of South Africa;

“the South African Act” means the Companies Act No. 46 of 1926 (as amended) of the Republic.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment, including this Act.

3. Subject to the laws in force in the Republic and with such Transfer on legislative, governmental, municipal or other authority, con- authorisation.
sion. licence or consent as is necessary, the Company may
transfer its registered office from England to a place in the
Republic.

4.—(1) As soon as reasonably practicable after the date of Registrar in
registration, the Company shall notify the Registrar in England England to
hereof by cablegram and shall also transmit to him, by registered strike off
mail, a certified copy of the certificate of incorporation issued register.
pursuant to section 18 of the South African Act by the Registrar
in South Africa and shall inform the Registrar in England of the
date of registration, and thereupon the Registrar in England shall,
from the date of registration, strike the name of the Company
from the register in England, and from that date the provisions of
the Companies Acts 1948 to 1967 (with the exception of those
provisions which apply to oversea companies) shall not apply
to the Company, but the Company shall not thereby cease or be
deemed to cease to exist, but shall instead be, or be deemed to be,
a company organised in accordance with the laws of the Republic
and subject thereto for all purposes shall be, and be deemed to be,
the same company as the existing Company.

(2) The Registrar in England shall retain and register the copy of the certificate of incorporation.

Copy of Act
to be
registered
in England.

5. The Company shall deliver to the Registrar in England a printed copy of this Act, and he shall retain and register the copy delivered, and if no such copy is so delivered within three months from the date of the passing of this Act, the Company shall incur a fine not exceeding two pounds for every day after the expiration of those three months during which the default continues, and any director or manager of the Company who knowingly and wilfully neglects to secure observance of the requirement of this subsection shall incur the like fine. Every fine under this section shall be recoverable summarily.

Costs of Act.

6. All the costs, charges and expenses preliminary to and of an incidental to the preparation, application for, obtaining and passing of this Act, or otherwise in relation thereto, shall be borne and paid by the Company.

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